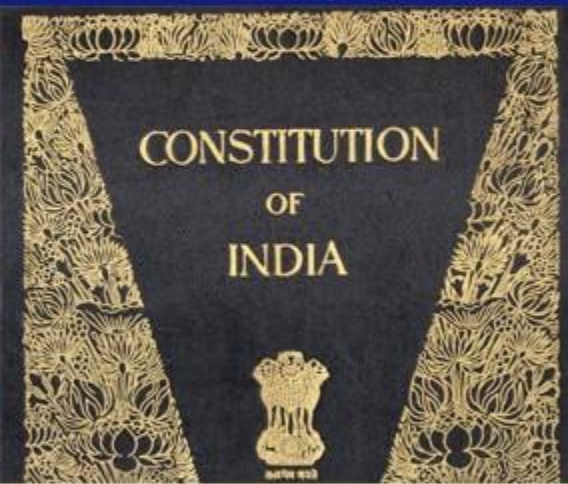


INDIAN POLITY



MODULE - 52



**THE PRESIDENT
ELECTION PROCESS**

INDIAN PRESIDENT

CONSTITUTION



EXECUTIVE



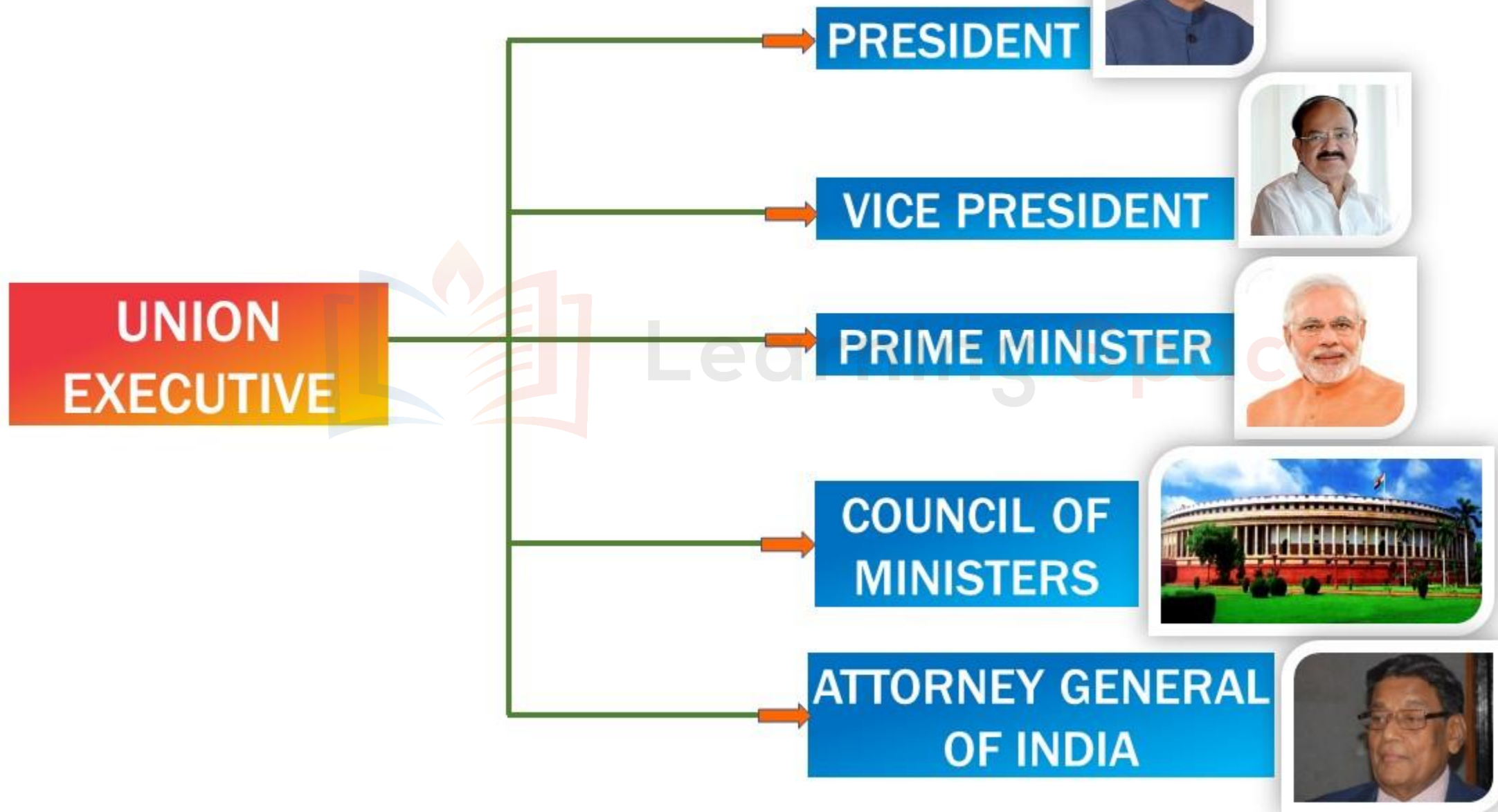
LEGISLATURE



JUDICIARY

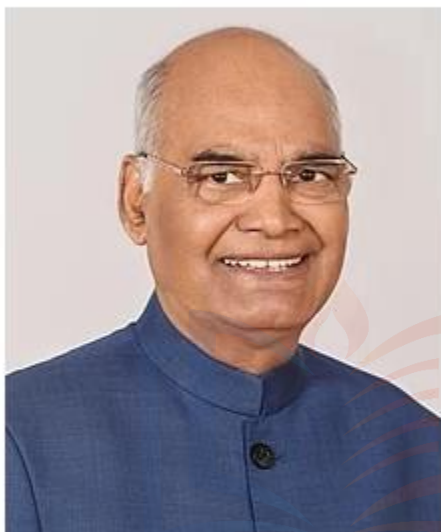


INDIAN PRESIDENT



INDIAN PRESIDENT

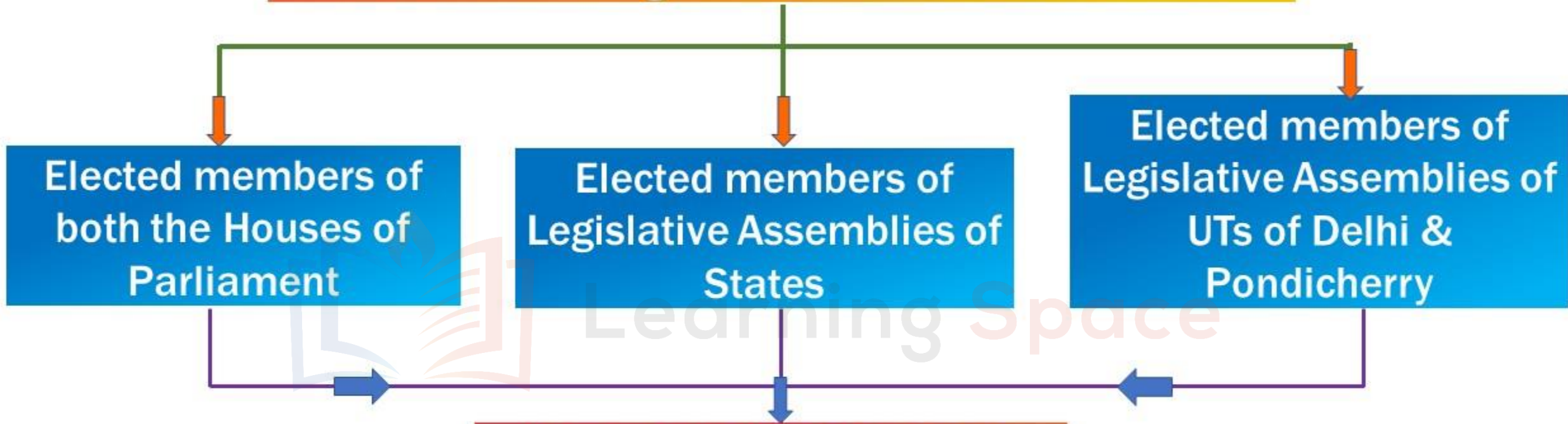
PRESIDENT



- 1 Articles 52 to 78 in Part V of the Constitution deal with the Union executive.
- 2 The Union executive consists of the President, the Vice-President, the Prime Minister, the Council of Ministers and the Attorney General of India.
- 3 The President is the head of the Indian State.
- 4 He is the first citizen of India and acts as the symbol of unity, integrity and solidarity of the nation.

INDIAN PRESIDENT

Electoral college for Presidential Election



IMPORTANT FOR MCQs

- A** No nominated members of Parliament.
- B** No nominated members of State Legislative Assemblies.
- C** No members of Legislative Councils.
- D** No nominated members of Legislative Assemblies of Delhi & Pondicherry.

INDIAN PRESIDENT

PRESIDENT

ELECTION OF THE PRESIDENT



1 As seen in the above chart, the nominated members of both of Houses of Parliament, the nominated members of the state legislative assemblies, the members (both elected and nominated) of the state legislative councils (in case of the bicameral legislature) and the nominated members of the Legislative Assemblies of Delhi and Puducherry do not participate in the election of the President.

2 Where an assembly is dissolved, **the members cease to be qualified to vote in presidential election**, even if fresh elections to the dissolved assembly are not held before the presidential election.

INDIAN PRESIDENT

PRESIDENT

ELECTION OF THE PRESIDENT



Uniformity in the scale of representation

3 The Constitution provides that there shall be **uniformity in the scale of representation of different states** as well as parity between the states as a whole and the Union at the election of the President.

4 To achieve this, the number of votes which each elected member of the legislative assembly of each state and the Parliament is entitled to cast at such election shall be determined in the following manner.

INDIAN PRESIDENT

PRESIDENT

ELECTION OF THE PRESIDENT

HOW DO YOU CALCULATE THE VALUE OF VOTE OF AN MLA/MP?

5

$$\text{Value of the vote of an MLA} = \frac{\text{Total population of state}}{\text{Total number of elected members in the state legislative assembly}} \times \frac{1}{1000}$$

6

$$\text{Total value of votes of an MP} = \frac{\text{Total value of votes of all MLAs of all states}}{\text{Total number of elected members of Parliament}}$$

- The ballot paper of a UP MLA will be valued at 208, of an Andhra Pradesh MLA at 159 and of an MLA from Sikkim at 7.
- The value of the ballot paper of any MP (from Rajya Sabha or Lok Sabha) is 708.

INDIAN PRESIDENT

PRESIDENT

ELECTION OF THE PRESIDENT

7 The President's election is held in accordance with the **system of proportional representation by means of the single transferable vote** and the voting is by secret ballot.

8 This system ensures that the successful candidate is returned by the absolute majority of votes.

9 A candidate, in order to be declared elected to the office of President, must secure a fixed quota of votes. The quota of votes is expressed as:

WHAT IS THE QUOTA REQUIRED TO GET ELECTED?

$$\text{Electoral quota} = \frac{\text{Total number of valid votes polled}}{\text{Seats Available} + 1 = (2)} + 1$$

INDIAN PRESIDENT

PRESIDENT

ELECTION OF THE PRESIDENT

HOW IS SINGLE TRANSFERABLE VOTE(STV) METHOD FOLLOWED?

Ballot Paper		Ballot Paper		Ballot Paper	
Anand	4	Anand	1	Anand	
Bala	3	Bala	3	Bala	1
Chandran	1	Chandran	2	Chandran	
Dinesh	2	Dinesh		Dinesh	

- 1 Each member of the electoral college is given only one ballot paper.
- 2 The voter, while casting his vote, is required to indicate his preferences by marking 1, 2, 3, 4, etc. against the names of candidates.
- 3 This means that the voter can indicate as many preferences as there are candidates in the fray.

INDIAN PRESIDENT

PRESIDENT

ELECTION OF THE PRESIDENT

HOW IS SINGLE TRANSFERABLE VOTE(STV) METHOD FOLLOWED?

Ballot Paper	
Anand	4
Bala	3
Chandran	1
Dinesh	2

4 Let us understand this with an example:

- In an election 5000 people cast valid votes, there is 1 seat available and 4 candidates. So electoral quota comes around 2501.
- The process of STV will continue until a candidate acquires this electoral quota.

5 **Electoral quota** = $\frac{\text{Total number of valid votes polled}}{\text{Seats Available} + 1} + 1$

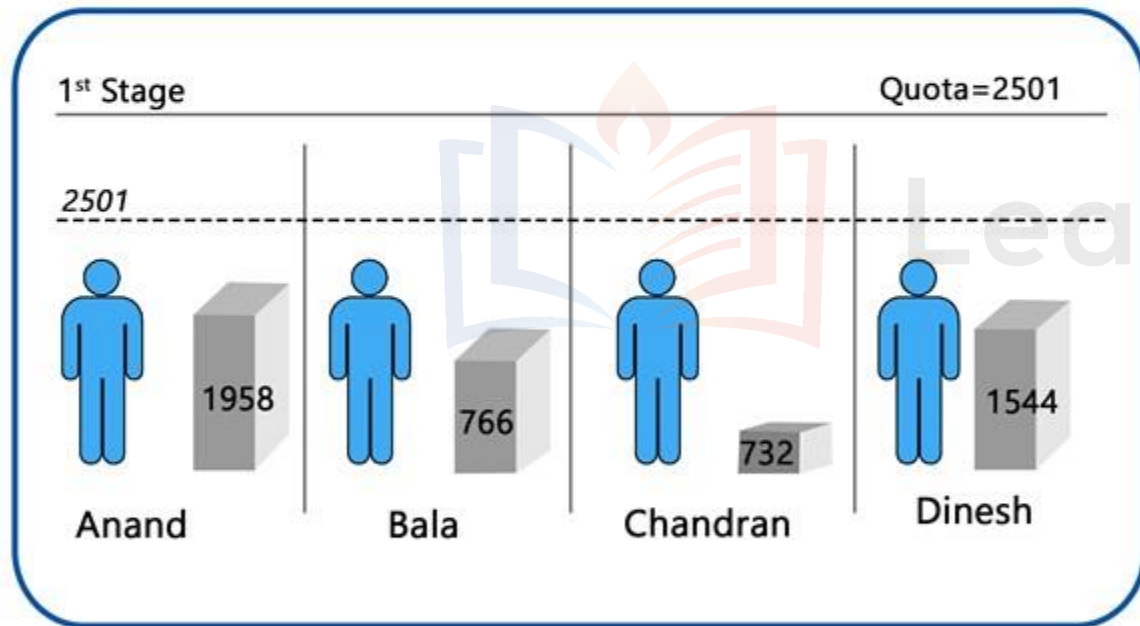
$$\text{Electoral quota} = \frac{5000}{1 + 1 = (2)} + 1 = 2501$$

INDIAN PRESIDENT

PRESIDENT

ELECTION OF THE PRESIDENT

HOW IS SINGLE TRANSFERABLE VOTE(STV) METHOD FOLLOWED?



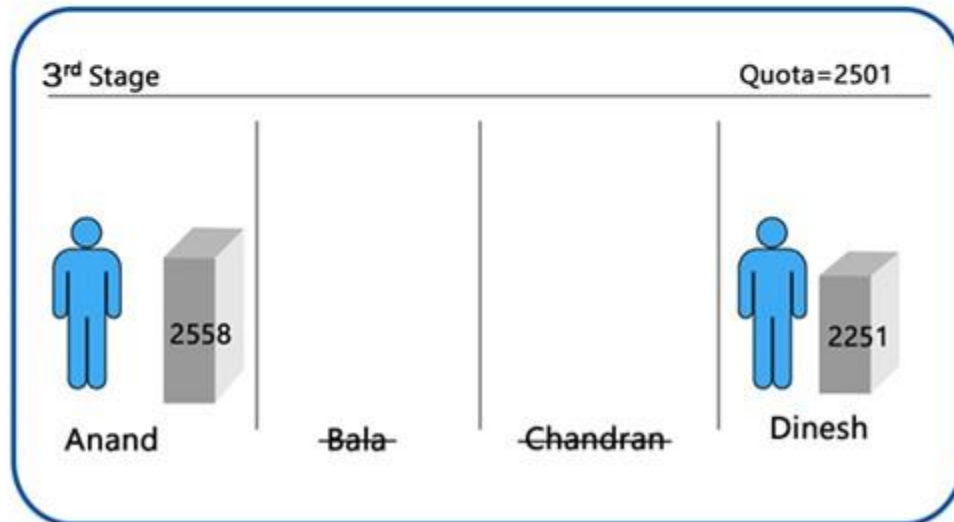
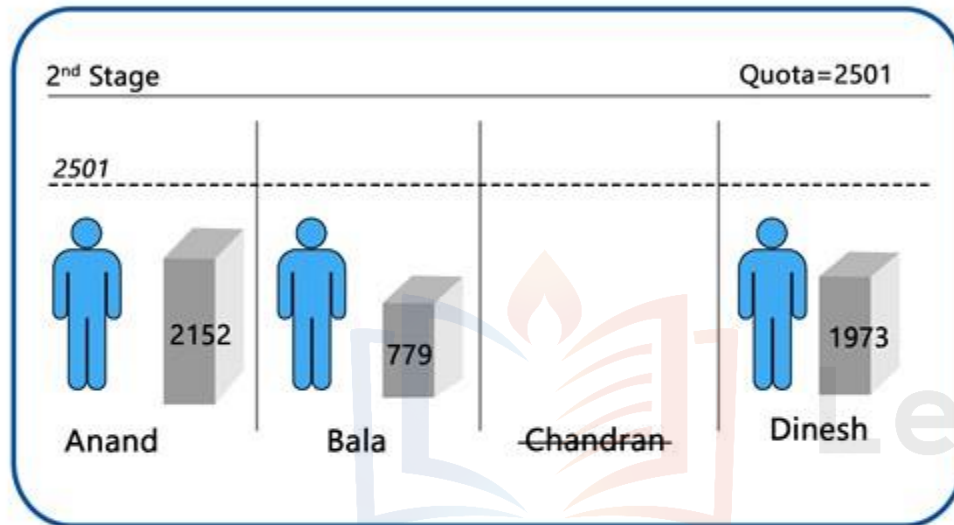
6 In the first phase, the first preference votes are counted.

7 In case a candidate secures the required quota in this phase, he is declared elected.

INDIAN PRESIDENT

PRESIDENT

ELECTION OF THE PRESIDENT



- 8 Otherwise, the process of transfer of votes is set in motion.
- 9 The ballots of the candidate securing the least number of first preference votes are cancelled and his second preference votes are transferred to the first preference votes of other candidates.
- 10 This process continues till a candidate secures the required quota.

HOW VOTES ARE COUNTED UNDER STV

Count first preferences for each candidate

Does any candidate have votes equal or greater than the quota?

Yes

Have enough candidates been elected?

No

Exclude last placed candidate and distribute votes to remaining preferences

No

Yes

Distribute surplus of all newly elected candidates to remaining preferences

Finish

INDIAN PRESIDENT

PRESIDENT

ELECTION OF THE PRESIDENT

- 1 All doubts and disputes in connection with election of the President are inquired into and decided by the Supreme Court whose decision is final.



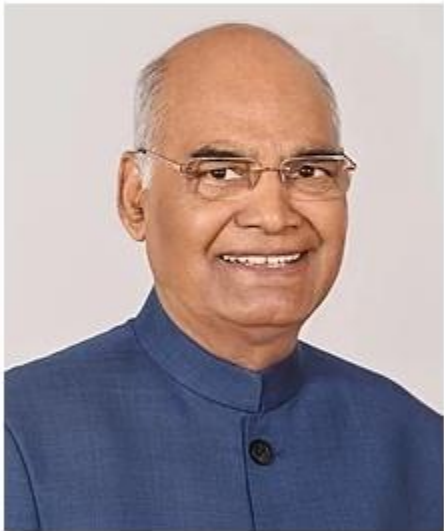
- 2 The election of a person as President cannot be challenged on the ground that the electoral college was incomplete (ie, existence of any vacancy among the members of electoral college).
- 3 If the election of a person as President is declared void by the Supreme Court, acts done by him before the date of such declaration of the Supreme Court are not invalidated and continue to remain in force.
- 4 Some people criticised the system of as undemocratic and proposed the idea of direct election.

INDIAN PRESIDENT

ELECTION OF THE PRESIDENT

CRITICISM OF INDIRECT ELECTION OF PRESIDENT

However, the Constitution makers chose the indirect election due to the following reasons.



Real Executive vs. Nominal Executive

- 1** The indirect election of the President is in harmony with the **parliamentary system** of government envisaged in the Constitution.
- 2** Under this system, the President is only a **nominal executive** and the real powers are vested in the council of ministers headed by the Prime Minister.
- 3** It would have been anomalous to have the President elected directly by the people and not give him any real power.

INDIAN PRESIDENT

ELECTION OF THE PRESIDENT

CRITICISM OF INDIRECT ELECTION OF PRESIDENT

However, the Constitution makers chose the indirect election due to the following reasons.



4 The direct election of the President would have been **very costly and time- and energy-consuming** due to the vast size of the electorate. This is **unwarranted** keeping in view that he is only a **symbolic head**.

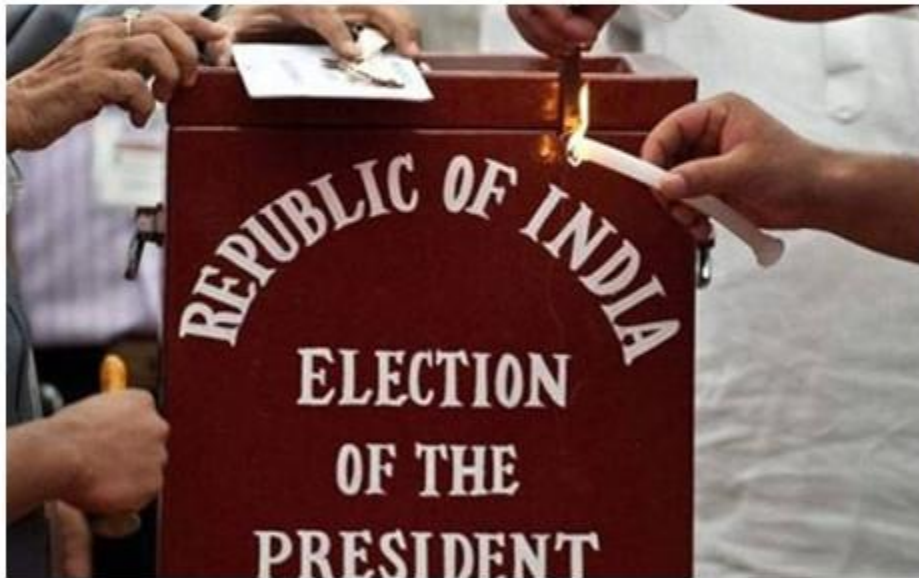
5 Some members of the Constituent Assembly suggested that the President should be elected by the members of the two Houses of Parliament alone.

INDIAN PRESIDENT

ELECTION OF THE PRESIDENT

CRITICISM OF INDIRECT ELECTION OF PRESIDENT

However, the Constitution makers chose the indirect election due to the following reasons.



Presidential election system at present makes him as a “representative” of the states of Indian Union

6 The makers of the Constitution did not prefer this as the Parliament, dominated by one political party, would have invariably chosen a candidate from that party and such a President could not represent the states of the Indian Union.

7 The present system makes the President a representative of the Union and the states equally.

INDIAN PRESIDENT

ELECTION OF THE PRESIDENT

CRITICISM OF INDIRECT ELECTION OF PRESIDENT



8 Further, it was pointed out in the Constituent Assembly that the expression 'proportional representation' in the case of presidential election is a **misnomer**.

9 Proportional representation takes place where two or more seats are to be filled.

10 In case of the President, the vacancy is only one.

11 It could better be called a **preferential or alternative vote system**.

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